



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 12 judgments on Tuesday 19 June 2018 and 26 judgments and / or decisions on Thursday 21 June 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 19 June 2018

[Kahadawa Arachchige and Others v. Cyprus \(applications nos. 16870/11, 16874/11, and 16879/11\)](#)

The applicants, Don Uditha Niroshana Kahadawa Arachchige, Dehiwalage Shehan Fernando, and Dushan Aruna Shanthi Budda Koralage, are Sri Lankan nationals who were born in 1974, 1978, and 1980 and live in Colombo, Kochchikade, and Pannipitiya (Sri Lanka).

All three men were deported by Cyprus in January 2011 after being arrested and held on remand for taking part in clashes with a group of other Sri Lankans in a district of Nicosia. The applicants denied taking part in the disturbance. The first and third applicants were held in detention for five days before being deported while the third applicant was held for seven days.

The applicants complain under Article 5 § 1 (right to liberty and security) and Article 5 § 4 (right to have lawfulness of detention decided speedily by a court) of the European Convention on Human Rights about their pre-deportation detention. The first applicant also alleges a violation of Article 8 (right to respect for private and family life) taken alone and in conjunction with Article 13 (right to an effective remedy) as he was deported while his wife and child were still in Cyprus.

Lastly, the first and second applicants complain under Article 1 of Protocol No. 7 (procedural safeguards relating to expulsion of aliens) to the Convention that even though they were lawful residents of Cyprus they had been deported without being informed of the deportation decision and without any procedural safeguards.

[Centrum för rättvisa v. Sweden \(no. 35252/08\)](#)

The case concerns in particular the interception of communications in Sweden.

The applicant, Centrum för rättvisa, is a non-profit foundation which was set up in 2002 and represents clients in rights litigation, in particular against the State. It is based in Stockholm.

The applicant foundation believes that, because of the sensitive nature of its activities, there is a risk that its communications through mobile telephones and mobile broadband has been or will be intercepted and examined by way of signals intelligence. Signals intelligence can be defined as intercepting, processing, analysing and reporting intelligence from electronic signals.

In its application to the European Court of Human Rights, the foundation alleges that Swedish legislation and practice in the field of signals intelligence has violated and continues to violate its rights under Article 8 (right to respect for private and family life, the home and the correspondence) of the European Convention. It has not brought any domestic proceedings, arguing under Article 13 (right to an effective remedy) that there is no effective remedy in Sweden for its Convention complaints.

[Bursa Barosu Başkanlığı and Others v. Turkey \(no. 25680/05\)](#)

The applicants are, on the one hand, Bursa Barosu Başkanlığı (Bursa Bar Association) and the Association for the Protection of Nature and the Environment (based in Bursa, Turkey), and on the other, 21 applicants, Turkish nationals who were born between 1947 and 1980 and who live in Bursa.

The case concerns the failure to enforce numerous judicial decisions setting aside administrative decisions authorising the construction and operation of a starch factory on farmland in Orhangazi (a district of Bursa) by a US company ("Cargill"). The factory, which was built between 1998 and 2000, began production in 2000 and is still operating.

Relying on Article 2 (right to life), Article 6 (right to a fair trial), Article 8 (right to respect for private and family life) and Article 13 (right to an effective remedy), the applicants complain of the protracted failure to execute the final, enforceable decisions setting aside the administrative decisions which had authorised the construction and operation of the starch factory.

[Erarslan and Others v. Turkey \(nos. 55833/09, 55837/09, 55838/09, and 55843/09\)](#)

The applicants, Recep Alton Erarslan, Sevtap Sema Murat, Bahriye Uğurel and Cihan Demirci Tansel, are Turkish nationals who were born in 1950, 1956, 1954 and 1960 respectively. They live in Istanbul (Turkey). At the material time they were members and leaders of the Association for Supporting Contemporary Life (*Çağdaş Yaşamı Destekleme Derneği*, "ÇYDD").

The case concerns their being held in police custody in the framework of a criminal investigation into a criminal organisation known as *Ergenekon*, whose presumed members were suspected of carrying out activities geared to overthrowing the Government by force and violence.

Relying on Article 5 § 1 (right to liberty and security of person), the applicants complain about being held in police custody, alleging that no evidence pointed to any plausible reasons for suspecting them of the criminal offence of belonging to an illegal organisation.

[Hülya Ebru Demirel v. Turkey \(no. 30733/08\)](#)

The applicant, Hülya Ebru Demirel, is a Turkish national who was born in 1976 and lives in Kilis (Turkey).

The case concerns her allegation of sexual discrimination after she was denied a job as a security officer at a state-run regional electricity distribution company.

In 1999 the applicant passed a civil service exam and was appointed as a security officer at the Kilis branch of the Turkish Electricity Distribution company. However, the company refused to appoint her as she was not a man who had completed military service.

The applicant initially won a discrimination court case against the company in 2001 but that decision was overturned on appeal by the Supreme Administrative Court in December 2002.

The applicant's further appeals were all unsuccessful, with the final decision being handed down in June 2009 by the Twelfth Division of the Supreme Administrative Court. That court did not follow an earlier ruling by one of the highest judicial formations of the Supreme Administrative Court in another case, which had found that a woman had been discriminated against in circumstances similar to those of the applicant.

Relying on Article 14 (prohibition of discrimination) taken in conjunction with Article 8 (right to respect for private and family life) the applicant complains that the decisions of the administrative authorities and the courts constituted sex discrimination. She also complains under Article 6 § 1 (right to a fair hearing) that the domestic courts delivered contradictory decisions in identical cases and that Twelfth Division of the Supreme Administrative Court failed to examine her submissions.

[Kula v. Turkey \(no. 20233/06\)](#)

The applicant, Onur Bilge Kula, is a Turkish national who was born in 1954 and lives in Ankara.

The case concerns a disciplinary sanction (a reprimand) imposed on Mr Kula, a university professor, for his participation in a TV programme outside his town of residence without his university's authorisation.

Relying on Article 9 (right to freedom of thought, conscience and religion) and Article 10 (freedom of expression), Mr Kula complains about the disciplinary sanction. Without relying on any Article he also complains of a breach of the principle of respect for his private life. Mr Kula further alleges a violation of Articles 6 (right to a fair trial), 7 (no punishment without law), 13 (right to an effective remedy) and 14 (prohibition of discrimination) of the Convention.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Jasavić v. Montenegro (no. 32655/11)

N. G. v. Russia (no. 61744/11)

Bayar v. Turkey (no. 24548/10)

Erbek v. Turkey (no. 49232/12)

Sarıtaş and Geyik v. Turkey (no. 70107/11)

Talu v. Turkey (no. 2118/10)

Thursday 21 June 2018

[Semache v. France \(no. 36083/16\)](#)

The applicant, Annissa Semache, is an Algerian national who was born in 1987 and lives in Argenteuil. The case concerns her father's death following his arrest by the police and his detention in Argenteuil police station.

On 9 June 2009 Mr Ali Ziri, who was 69 years old and the applicant's father, and A.K., who was 60 years old, drove off in a vehicle after consuming alcoholic beverages. At about 8.35 p.m. a police patrol from the Argenteuil station waved them down. Mr Ziri, who refused to get out of the vehicle and began insulting the police officers, was handcuffed and placed in the back of the police car together with A.K. The latter insulted and spat at an officer, who immobilised him by bending him over, with his head touching his knees. Mr Ziri attempted to strike the officer and was also immobilised using the same technique. On their arrival at the police station Mr Ziri was taken out of the vehicle and transported, apparently without any reaction, inside the building.

Inside the police station Mr Ziri and A.K. were laid out flat with their hands cuffed behind their backs. They vomited several times. Half an hour later the head of the police station asked a team to take both men to hospital. They allegedly waited for 45 minutes in the police van, in handcuffs, before being taken to the hospital. Mr Ziri and A.K. arrived at the hospital just after 10 p.m. While waiting for the medical staff, the police officers noted that Mr Ziri was vomiting and choking on his vomit. At 10.45 p.m. a doctor recorded cardiac arrest. Mr Ziri was taken to intensive care, where he remained in a coma. He died of a second heart attack at 7.30 a.m. on 11 June 2009.

A preliminary investigation was instigated for manslaughter against persons unknown. On 7 July 2009 the public prosecutor discontinued the case on the grounds that no offence had been

committed, in the absence of sufficient evidence to engage the liability of the police officers or the hospital staff.

A criminal complaint, together with an application to join the proceedings as civil parties, was lodged by Mr Ziri's family, including the applicant. A judicial investigation for manslaughter was then instigated against X. The investigating judge ordered autopsies. Various expert assessments were carried out. In a report issued on 31 August 2009, the doctors concluded that Mr Ziri had died of "hypoxic [caused by lack of oxygen] cardiac arrest by multifactorial suffocation". Another expert report also opted for the hypothesis of "cardiac consequences of a hypoxic episode".

On 15 October 2012 the investigating judge issued a discontinuance decision, upheld by the Versailles Court of Appeal. The applicant applied on points of law. The Court of Cassation set aside the judgment on the grounds that the investigating authority had failed to ascertain whether the control techniques used had been excessive in the light of the person's conduct and whether the assistance provided had been appropriate. It referred the case to the Rennes Court of Appeal.

By judgment of 12 December 2014 the Rennes Court of Appeal held that there was no need to supplement or continue the investigation and upheld the discontinuance decision. It found that the expert assessments had set out different hypotheses and had reached diverging conclusions, making it impossible to identify one definite cause of Mr Ziri's death. The Court of Cassation dismissed the applicant's appeal on points of law.

Relying on Articles 2 (right to life) and 3 (prohibition of inhuman and degrading treatment), the applicant complains about her father's death following his arrest by the police and his subsequent detention in Argenteuil police station, submitting that he suffered inhuman and degrading treatment while under the control of the police. She argues that the authorities failed to take the requisite action and that the investigation was not effective.

[S.Z. v. Greece \(no. 66702/13\)](#)

The applicant, S.Z., is a Syrian national who was born in 1984 and lives in Athens.

The case concerns his being detained for expulsion even though it was impossible to deport him owing to the war in Syria and that the conditions of his detention in a police station were poor.

Mr Z. was arrested in Athens in September 2013 for possession of a fake French passport and sentenced to 10 months' imprisonment. Later in the same month the authorities ordered that he be expelled, keeping him in detention until the expulsion order could be carried out.

In administrative and court proceedings he argued that he could not be deported as he was Syrian and there was a civil war going on in that country. He also applied for asylum and asked to be released. He was eventually granted refugee status in November 2013 and released. He was held throughout his detention in a cell in the basement of Zografou police station.

Relying on Article 3 (prohibition of inhuman or degrading treatment), he complains about the conditions of detention at the police station. He alleges under Article 5 § 1 (f) (right to liberty and security) that his detention was arbitrary, and complains under Article 5 § 4 (right to have lawfulness of detention decided speedily by a court) that he did not an effective remedy at his disposal to challenge the lawfulness of his detention.

[Hansen v. Norway \(no. 48852/17\)](#)

The applicant, Fjotolf Hansen, formerly Anders Behring Breivik, is a Norwegian national who was born in 1979 and is in preventive detention.

The case concerns the applicant's complaint under Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life, the home and the correspondence) about his conditions of detention.

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Aviso Zeta AG v. Austria (no. 5734/14)

Gyoshev and Others v. Bulgaria (nos. 46257/11, 59267/11, 59789/11, 66350/11, and 74169/11)

Mihalevi v. Bulgaria (no. 63481/11)

Petrov and Others v. Bulgaria (nos. 31044/12, 80505/13, 22461/14, and 74251/14)

Malver v. Denmark (no. 56619/15)

Vujisić v. Montenegro (no. 21712/16)

A v. Norway (no. 65170/14)

Kim and Ma v. Russia (no. 12961/07)

Kolehmainen and Others v. Sweden (no. 52752/16)

Danelyan v. Switzerland (nos. 76424/14 and 76435/14)

Bilgi v. Turkey (no. 37235/08)

Deniz v. Turkey (no. 34262/09)

Düz v. Turkey (no. 53388/11)

Erayman v. Turkey (no. 14749/06)

Erdoğu v. Turkey (no. 30182/10)

Gürkan v. Turkey (no. 33218/07)

Karabali v. Turkey (no. 63988/09)

Özçelik v. Turkey (no. 61000/08)

Öztekin v. Turkey (no. 2302/12)

Rahmanova v. Turkey (no. 6144/15)

Selek v. Turkey (no. 13844/13)

Temel and Others v. Turkey (no. 64344/11)

Torlak and Others v. Turkey (nos. 48176/11, 13669/12, and 62981/12)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.